

Should we treat non-human animals well because they have rights, interests, neither, or both?

EU law has already recognised animals as sentient beings since 2009, yet 330 million day-old male chicks are still being killed in the EU per year (Arimont, 2024; *Treaty on European Union* | *EUR-Lex*, 2018). Perhaps simply calling non-human animals “sentient beings” is not enough for industries to treat animals well. The acknowledgement and definition of non-human animal rights and interests would provide a stronger framework for the treatment of these beings. This essay argues that we should treat non-human animals well because they possess both morally serious interests and derivative prima facie rights. Their capacity for sentient experience establishes morally significant interests, and those very interests can generate prima facie rights not to be harmed or exploited; either element on its own is too fragile, but taken together, they provide the most defensible and action-guiding basis for the treatment of animals. For concision, “animals” hereafter means non-human animals; when intended to include humans, the essay will state “all sentient beings” or “humans and animals” explicitly.

The ethical foundation for evaluating the treatment of non-human animals is based on sentience, defined as the capacity to experience pain, pleasure, or other conscious states. The 2012 Cambridge Declaration on Consciousness presents empirical support for animal sentience, affirming that “humans are not unique in possessing the neurological substrates that generate consciousness” (Low, 2012, p. 2). Such evidence demonstrating the “near human-like levels of consciousness” (Low, 2012, p. 1) in mammals, birds, and other animals establishes the crucial premise that any sentient being has morally relevant interests, as their welfare can be objectively better or worse. Their interests would be states of affairs that matter to their well-being. Similarly, animals would have rights because their consciousness gives their life inherent value, and they would have a categorical right not to be harmed or killed.

This essay's argued derivation of rights from interests uses Joseph Raz's definition where "X has a right' if and only if X can have rights, and, other things being equal, an aspect of X's well-being (his interest) is a sufficient reason for holding some other person(s) to be under a duty" (Raz, 1988, p.2). By combining Singer's scalar view of welfare with Regan's insistence on the intrinsic value of sentient beings, this stance addresses the treatment of non-human animals through interest-based rights.

With sentience establishing morally relevant interests and interest theory demonstrating how substantial interests give way to rights, these criteria frame the subsequent examination of utilitarian, deontological, and hybrid approaches to animal ethics. Therefore, non-human animals have both rights and interests, which is why we should treat them well.

A prominent defence of treating animals well rests not on rights but on the equal consideration of interests. This exclusively interest-based approach, rooted in utilitarianism, evaluates the treatment of non-human animals using a single axiom: equal suffering counts equally, whoever experiences it. Singer's utilitarianism exemplifies this view, arguing for equal consideration based solely on welfare outcomes. He therefore asserts that a sow's agony in a farrowing crate must weigh as heavily in the moral ledger as a human's comparable agony (Singer, 2015). Applied straightforwardly, the principle condemns industrial pig farms, where sows are "forced to produce more than 20 piglets a year with little time to recover between pregnancies" (The MSPCA-Angell, 2025) while in total confinement. The sows' violent attempts to escape confinement (Cronin, 1985) demonstrate their capacity for suffering, which is a "vital characteristic that gives a being the right to equal consideration" (Singer, 2015, p. 43). Additionally, the interest-only view ranks experiences by intensity and complexity; for example, sparing an octopus prolonged pain trumps sparing a mussel a moment of discomfort, because the

former interest is more intense and more complex. Equal consideration opposes speciesism when the same amount of pain is inflicted, but allows for the ranking of physical and mental experiences by their felt severity. Therefore, the utilitarian school of moral philosophy that counts every unit of suffering and gives it the same weight across all sentient beings would demand that we stop harming the octopus first.

However, a significant limitation arises in scenarios involving aggregate harm. According to this logic, interest can be outweighed if causing suffering to a few animals maximises pleasure for many. For instance, intensive factory farming might be justified under strict utilitarian calculus if human pleasure and health benefits from inexpensive meat or animal experimentation outweigh animal suffering. If killing a contented hen and replacing her with an equally contented chick produces more total happiness than letting the first hen live, routine slaughter becomes a moral duty, and animal lives are easily replaceable. Singer quickly addresses this fallacy by arguing that it is still speciesist to perform experiments on animals rather than human infants because, like animals, infants cannot feel any anticipatory dread of being abducted and tested (Singer, 2015, p. 51). However, this response merely exposes a deeper vulnerability in his own utilitarian framework. If the anticipated human benefits from an experiment really did outweigh an infant's suffering, the equal consideration of interests would still endorse using the infant. In other words, Singer's counterargument eliminates speciesism but does not eliminate the possibility of morally repugnant trade-offs; it simply levels the field so that both animals and non-rational humans become permissible test subjects whenever aggregate utility is sufficient enough. Although animals certainly have an interest in protecting their well-being, it is not enough to justify why we should treat them well. This limitation in the interest-only case reveals the need for categorical side constraints, which a rights-based approach supplies.

Where utilitarianism weighs interests, a strictly rights-only approach emphasises inviolable protections derived from moral status rather than utility. Tom Regan argues that the “fundamental wrong is the system that allows us to view animals as our resources” (Regan, 1987, p. 179). Instead, humans need to recognise that animals are beings with beliefs, memories, emotions, and a sense of the future (Regan, 1983). Possessing such mental richness confers inherent value, and with it an inviolable right not to be harmed. Unlike in the interest-based case, the payoff here is moral certainty. Routine pig slaughter and animal experimentation become absolutely impermissible, even if the human population would gain a substantial number of benefits. This perspective also addresses the previously mentioned “replaceability” problem. Using the same chicken example, killing a contented hen to substitute an equally contented chick still violates that specific hen’s right to life; the rights of both the hen and the chick are absolute and cannot outweigh each other.

However, rights-only theories often face practical challenges in defining clear boundaries and balancing conflicts between rights-holders. Regan characterises animal awareness primarily with beliefs and desires (Regan, 1983). While many animals certainly meet this set of cognitive prerequisites for rights, fish species lack “neural architecture for phenomenal consciousness” and do not feel pain (Key, 2014). The theory, therefore, draws a line that excludes many vertebrates, leaving their moral status uncertain. Worse, rights can conflict with each other. When feral cats cause annual losses of approximately 60,000 burrowing seabirds on Macquarie Island (Service, 2014, p. 6), Regan’s framework lacks a principle for deciding whose life prevails since both species meet his prerequisites. Neither exterminating the cats nor allowing them to kill seabirds is allowed due to each species’ right. The conflict illustrates how categorical rights can deadlock when living beings’ interests systematically collide. Therefore, these tensions indicate that

categorical rights may need to be rooted in the weight of underlying interests. Arguing that non-human animals have rights does not fully justify our need to treat them well due to conflicts and the ambiguous moral status of particular species.

A more logically sound approach grounds rights directly in the seriousness of a being's interests. Joseph Raz explains in his interest theory that "'X has a right' if and only if" some element of X's well-being is "sufficient reason" to impose duties on others (Raz, 1988, p. 2). Drawing on his insight, contemporary theorists establish the threshold rule by arguing that any sentient creature has interests, but only threshold interests can develop into *prima facie* rights. Alasdair Cochrane specifically outlines how animals have an interest in avoiding suffering death, and, therefore, "sentient animals possess *prima facie* moral rights not to be killed and not to be subjected to pain" (Cochrane, 2012, p. 128). This definition effectively addresses the major limitation of the interests-only case. A pig's interest in staying alive becomes a *prima facie* right that can only be overridden by a catastrophically weightier claim, so consumers' trivial pleasure in cheap bacon can never outweigh it. Because such a claim is absent in routine meat production, the right remains undefeated, and factory farming is impermissible. Thus, the "replaceability" counterargument collapses. At the same time, this perspective provides a balance missing from Regan's rights-only framework. Using the same example where the feral cats, who hold a right to life, were killing tens of thousands of right-holding seabirds each year, an interest-based rights approach suggests that sparing an entire bird population from extinction outweighs the fewer feline lives lost due to human extermination. Hence, a humane cull that does not significantly reduce the cat population becomes morally permissible.

Moreover, the theory is also applicable to policies. For instance, vaccine testing on mice can proceed only when no alternative model exists and the expected human benefit is life-saving

because the mice's interest in avoiding pain, while serious, is less weighty than the entire human population's right to survive a pandemic. Thresholds to quantify animal suffering and pain are also established in a combination of unidimensional pain scales (Reid et al., 2013). These empirical pain scales give objective markers for severity that help with weighing interests. By anchoring rights in weighed interests, the interest-based rights model combines the moral clarity of deontological prohibitions with the flexibility needed for real-world trade-offs.

However, the interest-based rights model faces several objections. Virtue theorists argue that harming an animal is wrong primarily because it corrodes the agent's own moral character, not because it violates the animal's interest-based rights. This perspective would encourage us to treat animals well, not because they have rights or interests or both, but because it would be morally correct for us to do so. For instance, Mary Midgley asserts that "cruelty to animals" is "a sign of a bad moral character, [and] that we have to avoid it" (Midgley, n.d.). However, the animal's interest in avoiding suffering and a *prima facie* right to be free from intentionally inflicted pain make the human's action cruel. It is morally bad for a human to harm an animal because it would be a violation of the animal's rights rooted in its sentience and capacity for suffering. Therefore, recognizing the animal's rights and interests establishes the framework for virtuous human conduct, suggesting that we treat animals well because they have both interests and rights. The second limitation is the vagueness of threshold interests. Where do we draw the line between a protectable interest and a merely weighty preference (Sunstein & Nussbaum, 2004)? The line is set by empirical markers such as the previously mentioned pain scales and gradings of sentience. These quantitative, testable markers of pain severity provide transparent comparisons of the weightiness of the animals' interests and thus which rights can outweigh which. Therefore, these challenges refine rather than refute the interest-based rights model,

leaving it the most coherent guide and reasoning for how and why we should treat non-human animals well.

Ultimately, we should treat non-human animals well because they have both morally weighty interests and the derivative, prima facie rights that those interests ground. Sentience confers every animal moral consideration, but the weight of their deepest interests, such as life and freedom from intense suffering, forms the foundation of prima facie rights. Arguing that animals deserve to be treated well solely because they have rights or interests is insufficient and logically faulty.

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